

1 _____ BILL NO. _____

2 INTRODUCED BY _____
3 (Primary Sponsor)

4 A BILL FOR AN ACT ENTITLED: "AN ACT EXEMPTING AGRICULTURAL PROPERTY FROM OPEN SPACE
5 PROPERTY TAX LEVIES; AMENDING SECTION 7-6-2527, MCA; AND PROVIDING AN IMMEDIATE
6 EFFECTIVE DATE AND A RETROACTIVE APPLICABILITY DATE."

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8 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

9
10 **Section 1.** Section 7-6-2527, MCA, is amended to read:

11 **"7-6-2527. Taxation -- public and governmental purposes.** (1) A county may impose a property tax
12 levy for any public or governmental purpose not specifically prohibited by law. Public and governmental
13 purposes include but are not limited to:

14 (1) (a) district court purposes as provided in 7-6-2511;

15 (2) (b) county-owned or county-operated health care facility purposes as provided in 7-6-2512;

16 (3) (c) county law enforcement services and maintenance of county detention center purposes as
17 provided in 7-6-2513 and search and rescue units as provided in 7-32-235;

18 (4) (d) multijurisdictional service purposes as provided in 7-11-1022;

19 (5) (e) transportation services for senior citizens and persons with disabilities as provided in 7-14-111;

20 (6) (f) support for a port authority as provided in 7-14-1132;

21 (7) (g) county road, bridge, and ferry purposes as provided in 7-14-2101, 7-14-2501, 7-14-2502, 7-14-
22 2503, 7-14-2801, and 7-14-2807;

23 (8) (h) recreational, educational, and other activities of the elderly as provided in 7-16-101;

24 (9) (i) purposes of county fair activities, parks, cultural facilities, and any county-owned civic center,
25 youth center, recreation center, or recreational complex as provided in 7-16-2102 and 7-16-2109;

26 (10) (j) programs for the operation of licensed day-care centers and homes as provided in 7-16-2108
27 and 7-16-4114;

28 (11) (k) support for a museum, facility for the arts and the humanities, collection of exhibits, or a

1 museum district created under provisions of Title 7, chapter 11, part 10, or former Title 7, chapter 16, part 22;
 2 (12) (l) extension work in agriculture and home economics as provided in 7-21-3203;
 3 (13) (m) weed control and management purposes as provided in 7-22-2142;
 4 (14) (n) insect control programs as provided in 7-22-2306;
 5 (15) (o) fire control as provided in 7-33-2209;
 6 (16) (p) ambulance service as provided in 7-34-102;
 7 (17) (q) public health purposes as provided in 50-2-111;
 8 (18) (r) public assistance purposes as provided in 53-3-115;
 9 (19) (s) indigent assistance purposes as provided in 53-3-116;
 10 (20) (t) developmental disabilities facilities as provided in 53-20-208;
 11 (21) (u) mental health services as provided in 53-21-1010;
 12 (22) (v) airport purposes as provided in 67-10-402 and 67-11-302;
 13 (23) (w) purebred livestock shows and sales as provided in 81-8-504;
 14 (24) (x) economic development purposes as provided in 90-5-112;
 15 (25) (y) prevention programs, including programs that reduce substance abuse; and
 16 (26) (z) forest or grassland hazardous fuels reduction projects in areas near homes and communities
 17 where wildland fire is a threat.

18 (2) Property classified as agricultural property under 15-6-133 is exempt from open space property
 19 tax levies. If agricultural property that is exempt from open space property tax levies under this subsection (2)
 20 receives a payment from open space levy revenue, the county may reduce the open space payment for the
 21 exempt agricultural property."

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23 NEW SECTION. Section 2. Effective date. [This act] is effective on passage and approval.

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25 NEW SECTION. Section 3. Retroactive applicability. [This act] applies retroactively, within the

26 meaning of 1-2-109, to open space levies in property tax years beginning on or after January 1, 2025.

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